

		Defendant in 2023 and 2024, Defendant refused to meaningfully respond. That is insufficient to show any ongoing representation of Plaintiff by Defendant. Plaintiff asserts that there was willful concealment by Defendant, but fails to allege facts stating when and how such willful concealment occurred. Plaintiff also argues that some “legal or physical disability” restricted his ability to commence this action, but he has failed to articulate any actual physical or legal disability that restricted his ability to assert a claim. Tolling based on C.C.P. § 340.6(a)(2) –(a)(4) is thus not adequately alleged. The Demurrer as to the First Cause of Action is therefore again SUSTAINED. Plaintiff shall have 20 days leave to amend for this cause of action. The Demurrer as to the Second, Third and Fourth Causes of Action is SUSTAINED. Granting leave to amend after a demurrer is sustained on one ground does not give the plaintiff license to add any possible cause of action that might not be subject to dismissal on that ground. (<i>Zakk v. Diesel</i> (2019) 33 Cal.App.5th 431, 456.) As these causes of action were added without leave to amend, the Demurrer as to each is sustained without leave to amend at present, but without prejudice to a future motion for leave to amend to assert them. The 8/17/26 CMC is continued to 11/30/26 at 8:45am in Dept. C24. Defendant shall give notice.
307	<i>Anderson-Flinth vs. L3Harris Technologies, Inc.</i>	The demurrer by defendant Manny Garcia to the first amended complaint (FAC) filed by plaintiff Katherine Anderson-Flint is OVERRULED. The motion to strike is GRANTED as to paragraphs 3(a)-(h) and the prayer for injunctive relief and DENIED as to the remainder.

Plaintiff is granted 14 days leave to amend only paragraphs 2(c) and 3(a)-(h) of the FAC.

DEMURRER

2nd and 4th Causes of Action: Harassment based on Race and Gender: These two causes of action are sufficiently pled. (See, FAC Paras. 18 & 19; CAC No. 2521A [elements]; Govt. Code §12940(j); *Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405 [demurrer does not challenge truth of allegations].) Facts pled show severe or pervasive conduct. (FAC ¶18 [10-15 “counseling” sessions by supervisor telling plaintiff to stop being “an aggressive angry black woman.”]; see also, Govt. Code §12923(b) [single incident sufficient].) Accordingly, the demurrer is **OVERRULED** as to the 2nd and 4th causes of action.

9th Cause of Action: Intentional Infliction of Emotional Distress: This cause of action is sufficiently pled. (See, FAC ¶¶18-19; see also, *Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050 [elements]; *Ess v. Eskaton Properties, Inc.* (2002) 97 Cal. App. 4th 120, 130 [outrageous conduct based on average member of community].) Accordingly, the demurrer is **OVERRULED** as to the 9th cause of action.

MOTION TO STRIKE

Punitive Damages: The FAC states sufficient facts to allege punitive damages. (See FAC ¶18-19; See also, Civ. Code, § 3294 [malice, oppression, or fraud]; *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [despicable conduct].) Accordingly, the motion to strike punitive damages is **DENIED**.

Injunctive Relief: There are no facts pled which make the prayer for injunctive relief relevant as against Garcia. Neither plaintiff nor Garcia are currently employed at L3Harris Technologies, Inc. (Code of Civil Procedure §436 [court may strike any “irrelevant, false, or improper matter.”]; see also, Code of Civil Procedure §431.10 [defining immaterial allegation].) Accordingly the motion to strike is GRANTED as to the prayer for injunctive relief at page 36, line 21 in the FAC as it relates to Garcia only.

Para. 2(c) - DOE Defendant Allegations: These allegations are sufficiently pled. The motion is DENIED as to paragraph 2(c).

Para. 3(a)-(h): The FAC does not plead facts showing how the agency/alter ego/ratification allegations are relevant to the claims against Garcia. The FAC does not appear to allege Garcia is liable for the acts of others but instead alleges Garcia is liable for his own misconduct. Accordingly, the motion to strike is GRANTED as to paragraphs 3(a)-(h) as it relates to Garcia only.

Plaintiff is granted 14 days leave to amend only paragraphs 3(a)-(h) and the prayer for injunctive relief. Leave to amend is NOT granted to alter/amend other portions of the complaint or to add/amend other causes of action. If plaintiff seeks leave to amend, such must be done pursuant to CCP §473 and the appropriate rules.

If an amended complaint is not filed August 31, 2026, defendant Manny Garcia is ordered to file his answer to the FAC not later than September 14, 2026.

The 8/17/26 CMC is continued to 9/28/26 at 8:45am in Dept. C24.

		Plaintiff shall give notice.
308	<i>Kim vs. City of Irvine</i>	The unopposed demurrer of defendant City of Irvine (Defendant) directed to the complaint of plaintiff Richard Kim (Plaintiff) is SUSTAINED with 20 days leave to amend. Defendant's alternative motion to strike is MOOT. "The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) "Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations [Citation] but must specify in what manner the condition constituted a dangerous condition." (Ibid.) The complaint fails to plead the negligence cause of action against Defendant with the requisite specificity. The complaint does not clearly allege the "improperly placed" animal trap was owned by Defendant or that it was placed by an employee or agent of Defendant. The complaint also fails to allege with sufficient particularity Defendant's actual or constructive notice of the alleged dangerous condition in sufficient time to have taken corrective action. (See <i>Brenner, supra</i>, 113 Cal.App.4th at 439 [discussing elements of cause of action against public entity under Government Code section 835].) Moreover, Plaintiff failed to oppose the demurrer. As such, Plaintiff implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The 8/17/26 CMC is continued to 11/16/26 at 8:45am in Dept. C24. Defendant shall give notice